

It is important that biosecurity incidents are reported as soon as practicable. This ensures that any biosecurity risk associated with the incident can be managed to an acceptable level and to limit the risk associated with any pest or disease entering, establishing or spreading into Australian territory.

The Biosecurity Act 2015 requires persons in charge of goods that are subject to biosecurity control to notify the Department of Agriculture, Fisheries and Forestry of reportable biosecurity incidents.

Incidents that must be reported

Events relating to goods that are prohibited goods, conditionally non-prohibited goods or suspended goods

- the goods are in a container, a conveyance or other premises and are not as described on a manifest or an import permit relating to the goods;
- the goods are in a container, a conveyance or other premises that is damaged and the goods are no longer secure;
- the goods have been lost or stolen;
- the goods have been destroyed in circumstances other than in compliance with a direction given by a biosecurity officer.

Events relating to conditionally non-prohibited goods

- a change to the intended use of the goods.

Events relating to goods generally

- the goods or any container holding the goods, or the conveyance or other premises in which the goods are being held, have been, or are likely to have been, exposed to contamination, infestation or infection from prohibited goods, conditionally non-prohibited goods or suspended goods;
- the goods are infested with a live pest (for example, an insect, invertebrate or other animal);
- biosecurity measures that have been required to be taken in relation to the goods under Chapter 3 of the Act have not been taken (including because it was not possible for the biosecurity measures to be taken in relation to the goods).

Who must report biosecurity incidents

You are required by law to report certain biosecurity incidents if you are:

- a person in charge of goods subject to biosecurity control or an exposed goods order, or
- a person in charge of an aircraft or vessel carrying goods subject to biosecurity control or an exposed goods order; and
- you become aware of a reportable biosecurity incident in relation to those goods.

The obligation to report a biosecurity incident applies whether or not the person is in Australian territory when they became aware of the biosecurity incident.

Reporting a biosecurity incident

Biosecurity incidents can be reported:

- directly to a biosecurity officer
- to the department on 1800 798 636
- by completing a [Reportable biosecurity incident form](#).

Failure to report an incident

The department has defined biosecurity incidents because they pose serious biosecurity risks that we need to know about in order to take action to prevent or limit the biosecurity damage.

Where a person in charge fails to report a biosecurity incident they commit an offence under the Biosecurity Act and may be liable to a civil penalty.

Failure to notify the department about a reportable a biosecurity incident could result in the escalation of serious biosecurity risk and could lead to an incursion. Delayed notification can reduce the options available to the department to resolve the biosecurity issues and there are serious ramifications for the person or entity involved.

Source: <https://www.agriculture.gov.au/biosecurity-trade/policy/legislation/reportable-incident>